



U.S. Department
of Transportation

**Pipeline and
Hazardous Materials
Safety Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 12 2005

DOT E-14224

EXPIRATION DATE: July 31, 2005

1. GRANTEE: Petroleum Helicopters, Inc.
Lafayette, LA
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of certain Division 1.1 explosives, which are forbidden for shipment by cargo aircraft. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Table, Column (9B), §§ 172.203(a), 172.301(c), and 175.320(a).
5. BASIS: This emergency exemption is based on the application of Petroleum Helicopters, Inc., dated July 12, 2005, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Cord, Detonating, flexible	1.1D	UN0065	II

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7. SAFETY CONTROL MEASURES:

- a. PACKAGING - The detonating cord must be individually packaged in magazines.
- b. The magazines must be secured within the aircraft to prevent movement.
- c. A maximum of 8 pounds net of explosive is authorized on the aircraft.
- d. No other hazardous material is authorized on the aircraft.

8. SPECIAL PROVISIONS:

- a. The shipment must be transported by Petroleum Helicopters, Inc., originating at Baton Rouge Metropolitan Airport, Baton Rouge LA, destined for offshore block Mississippi Canyon 778 Discover Enterprise Drill Ship.
- b. No person other than a member of the crew or shipper may be onboard the aircraft.
- c. The flight plan must avoid populated areas to the maximum extent possible.
- d. The pilot must be knowledgeable of the hazardous materials being carried and any actions to be taken in the event of an emergency.
- e. The marking requirements in §§ 172.203(a) and 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard the aircraft used to transport the explosives covered by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5105 et seq:

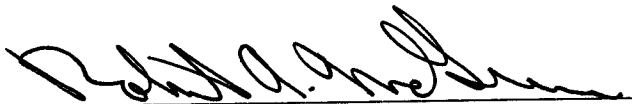
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable. In addition, the air carrier must comply with all cargo security mandates as required by the air carrier's applicable TSA approved security program and associated security directives.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this exemptions, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS. Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: KAH/DFB